Printed by: 26ffbcee8c8c739@placeholder.93276.edu. Printing is for personal, private use only. No part of this book may be reproduced or transmitted without publisher's prior permission. Violators will be prosecuted.

Kennedy, Justice

The Constitution promises liberty to all within its reach, a liberty that includes certain specific rights that allow persons ... to define and express their identity. The petitioners seek to find that liberty by marrying someone of the same sex and having their marriages deemed lawful on the same terms and conditions as marriages between persons of the opposite sex.

[T]he annals of human history reveal the transcendent importance of marriage. Marriage is sacred to those who live by their religions and offers unique fulfillment to those who find meaning in the secular realm. There are untold references to the beauty of marriage in religious and philosophical texts spanning time, cultures, and faiths, as well as in art and literature in all their forms. It is fair and necessary to say these references were based on the understanding that marriage is a union between two persons of the opposite sex. That history is the beginning of these cases. The respondents say it should be the end as well. To them, it would demean a timeless institution if the concept and lawful status of marriage were extended to two persons of the same sex. This view long has been held—and continues to be held—in good faith by reasonable and sincere people here and throughout the world.

The petitioners acknowledge this history but contend that these cases cannot end there. [They do not seek] to demean the revered idea and reality of marriage. To the contrary, it is the enduring importance of marriage that underlies the petitioners' contentions. [T]he petitioners seek [the right to marry] because of their respect—and need—for its privileges and responsibilities. And their immutable nature dictates that same-sex marriage is their only real path to this profound commitment.

Recounting the circumstances of three of these cases illustrates the urgency of the petitioners' cause from their perspective. Petitioner James Obergefell, a plaintiff in the Ohio case, met John Arthur over two decades ago. They fell in love and started a life together. In 2011, however, Arthur was diagnosed with amyotrophic lateral sclerosis, or ALS. This debilitating disease is progressive, with no known cure. Two years ago, Obergefell and Arthur decided to commit to one another, resolving to marry before Arthur died. To fulfill their mutual promise, they traveled from Ohio to Maryland, where same-sex marriage was legal, [and were wed there]. Three months later, Arthur died. Ohio law does not permit Obergefell to be listed as the surviving spouse on Arthur's death certificate. By statute, they must remain strangers even in death, a state-imposed separation Obergefell deems "hurtful for the rest of time." He brought suit to be shown as the surviving spouse on Arthur's death certificate.

April DeBoer and Jayne Rowse are co-plaintiffs in the case from Michigan. They celebrated a commitment ceremony to honor their permanent relation in 2007. In 2009, DeBoer and Rowse fostered and then adopted a baby boy. Later that same year, they welcomed another son into their family. The new baby, born prematurely and abandoned by his biological mother, required around-the-clock care. The next year, a baby girl with special needs joined their family. Michigan, however, permits only opposite-sex married couples or single individuals to adopt, so each child can have only one woman as his or her legal parent. If an emergency were to arise, schools and hospitals may treat the three children as if they had only one parent. And, were tragedy to befall either DeBoer or Rowse, the other would have no legal rights over the children she had not been permitted to adopt. This couple seeks relief from the continuing uncertainty their unmarried status creates in their lives.

Army Sergeant Ijpe DeKoe and his partner Thomas Kostura, co-plaintiffs in the Tennessee case, fell in love. In 2011, DeKoe received orders to deploy to Afghanistan. Before leaving, he and Kostura married in New York. When DeKoe returned [from his deployment], the two settled in Tennessee, where DeKoe works for the Army Reserve. Their lawful marriage is stripped from them whenever they reside in Tennessee, returning and disappearing as they travel across state lines. DeKoe ... endure[s] a substantial burden [as a result].

The ancient origins of marriage confirm its centrality, but [its history] is one of both continuity and change. For example, marriage was once viewed as an arrangement by the couple's parents based on political, religious, and financial concerns; but by the time of the Nation's founding, it was understood to be a voluntary contract between a man and a woman. [Another example involves] the centuries-old doctrine of coverture, [under which] a married man and woman were treated by the State as a single, male-dominated legal entity. As women gained legal, political, and property rights, and as society began to understand that women have their own equal dignity, the law of coverture was abandoned. These and other developments in the institution of marriage ... worked deep transformations in its structure [and] have strengthened, not weakened, the institution of marriage. Indeed, changed understandings of marriage are characteristic of a Nation where new dimensions of freedom become apparent to new generations, often through perspectives that begin in pleas or protests and then are considered in the political sphere and the judicial process.

This dynamic can be seen in the Nation's experiences with the rights of gays and lesbians. Until the mid-20th century, same-sex intimacy long had been condemned as immoral by the State itself in most Western nations, a belief often embodied in the criminal law. For this reason, among others, many persons did not deem homosexuals to have dignity in their own distinct identity. A truthful declaration by same-sex couples of what was in their hearts had to remain unspoken. Even when a greater awareness of the humanity and integrity of homosexual persons came in the period after World War II, the argument that gays and lesbians had a just claim to dignity was in conflict with both law and widespread social conventions. Same-sex intimacy remained a crime in many States. Gays and lesbians were prohibited from most government employment, barred from military service, excluded under immigration laws, targeted by police, and burdened in their rights to associate. For much of the 20th century, moreover, homosexuality was treated as ... a mental disorder. Only in more recent years have psychiatrists and others recognized that sexual orientation is both a normal expression of human sexuality and immutable.

In the late 20th century, following substantial cultural and political developments, same-sex couples began to lead more open and public lives and to establish families. This development was followed by a quite extensive discussion of the issue in both governmental and private sectors and by a shift in public attitudes toward greater tolerance. As a result, questions about the rights of gays and lesbians reached the courts.

This Court first gave detailed consideration to the legal status of homosexuals in *Bowers v Hardwick*, 478 U.S. 186 (1986). There it upheld the constitutionality of a Georgia law deemed to criminalize certain homosexual acts. Ten years later, in *Romer v. Evans*, 517 U.S. 620 (1996), the Court invalidated an amendment to Colorado's Constitution that sought to foreclose any branch or political subdivision of the State from protecting persons against discrimination based on sexual orientation. Then, in 2003, the Court overruled *Bowers*, holding that laws making same-sex intimacy a crime "demea[n] the lives of homosexual persons." *Lawrence v Texas*, 539 U.S. 558, 575 (2003).

Against this background, the legal question of same-sex marriage arose. In 1993, the Hawaii Supreme Court held Hawaii's law restricting marriage to opposite-sex couples constituted a classification on the basis of sex and was therefore subject to strict scrutiny under the Hawaii Constitution. Although this decision did not mandate that same-sex marriage be allowed, some States [chose to reaffirm] in their laws that marriage is defined as a union between opposite-sex partners. So too in 1996, Congress

Printed by: 26ffbcee8c8c739@placeholder.93276.edu. Printing is for personal, private use only. No part of this book may be reproduced or transmitted without publisher's prior permission. Violators will be prosecuted.

[chose to reaffirm] in their laws that marriage is defined as a union between opposite-sex partners. So too in 1996, Congress passed the Defense of Marriage Act (DOMA), defining marriage for all federal-law purposes as "only a legal union between one man and one woman as husband and wife."

The new and widespread discussion of the subject led other States to a different conclusion. In 2003, the Supreme Judicial Court of Massachusetts held that the State's constitution guaranteed same-sex couples the right to marry. After that ruling, some additional States granted marriage rights to same-sex couples, either through judicial or legislative processes. Two terms ago, in *United States v. Windsor*, 133 S. Ct. 2675 (2013), this Court invalidated DOMA to the extent it barred the federal government from treating same-sex marriages as valid even when they were lawful in the State where they were licensed. DOMA, the Court held, impermissibly disparaged those same-sex couples "who wanted to affirm their commitment to one another before their children, their family, their friends, and their community."

Numerous cases about same-sex marriage have reached the United States Courts of Appeals in recent years. With the exception of the opinion here under review and one other, the Courts of Appeals have held that excluding same-sex couples from marriage violates the Constitution. There also have been many thoughtful district court decisions addressing same-sex marriage —and most of them, too, have concluded same-sex couples must be allowed to marry.

Under the Due Process Clause of the Fourteenth Amendment, no State shall "deprive any person of life, liberty, or property, without due process of law." The fundamental liberties protected by this Clause include most of the rights enumerated in the Bill of Rights. In addition, these liberties extend to certain personal choices central to individual dignity and autonomy, including intimate choices that define personal identity and beliefs. *See, e.g*, *Eisenstadt v Baird*, 405 U.S. 438, 453 (1972); *Griswold v Connecticut*, 381 U.S. 479, 484—486 (1965).

The identification and protection of fundamental rights is an enduring part of the judicial duty to interpret the Constitution. [I]t requires courts to exercise reasoned judgment in identifying interests of the person so fundamental that the State must accord them its respect. History and tradition guide and discipline this inquiry but do not set its outer boundaries. That method respects our history and learns from it without allowing the past alone to rule the present. The nature of injustice is that we may not always see it in our own times. The generations that wrote and ratified the Bill of Rights and the Fourteenth Amendment did not presume to know the extent of freedom in all of its dimensions, and so they entrusted to future generations a charter protecting the right of all persons to enjoy liberty as we learn its meaning. When new insight reveals discord between the Constitution's central protections and a received legal stricture, a claim to liberty must be addressed.

Applying these established tenets, the Court has long held that the right to marry is protected by the Constitution. In *Loving v. Virginia*, 388 U.S. 1, 12 (1967), which invalidated bans on interracial unions, a unanimous Court held that marriage is "one of the vital personal rights essential to the orderly pursuit of happiness by free men." The Court reaffirmed that holding in *Zablocki v Redhail*, 434 U.S. 374, 384 (1978), which held the right to marry was burdened by a law prohibiting fathers who were behind on child support from marrying. Over time and in other contexts, the Court has reiterated that the right to marry is fundamental under the Due Process Clause. [Citations omitted.]

It cannot be denied that this Court's cases describing the right to marry presumed a relationship involving opposite-sex partners. The Court, like many institutions, has made assumptions defined by the world and time of which it is a part. This was evident in *Baker v. Nelson*, 409 U.S. 810, a one-line summary decision issued in 1972, holding the exclusion of same-sex couples from marriage did not present a substantial federal question.

page 3-33

Still, there are other, more instructive precedents. In defining the right to marry, [this Court's] cases have identified essential attributes of that right based in history, tradition, and other constitutional liberties inherent in this intimate bond. *See, e.g., Zablocki*; *Loving*; *Griswold*. And in assessing whether the force and rationale of its cases apply to same-sex couples, the Court must respect the basic reasons why the right to marry has been long protected.

This analysis compels the conclusion that same-sex couples may exercise the right to marry. The four principles and traditions to be discussed demonstrate that the reasons marriage is fundamental under the Constitution apply with equal force to same-sex couples.

A first premise of the Court's relevant precedents is that the right to personal choice regarding marriage is inherent in the concept of individual autonomy. This abiding connection between marriage and liberty is why *Loving* invalidated interracial marriage bans under the Due Process Clause. *See* 388 U.S. at 12. Like choices concerning contraception, family relationships, procreation, and childrearing, all of which are protected by the Constitution, decisions concerning marriage are among the most intimate that an individual can make. The nature of marriage is that, through its enduring bond, two persons together can find other freedoms, such as expression, intimacy, and spirituality. This is true for all persons, whatever their sexual orientation. *See Windsor*, 133 S. Ct. 2675. There is dignity in the bond between two men or two women who seek to marry and in their autonomy to make such profound choices.

A second principle in this Court's jurisprudence is that the right to marry is fundamental because it supports a two-person union unlike any other in its importance to the committed individuals. This point was central to *Griswold v. Connecticut*, which held the Constitution protects the right of married couples to use contraception. 381 U.S. at 485.

As this Court held in *Lawrence*, same-sex couples have the same right as opposite-sex couples to enjoy intimate association. But while *Lawrence* confirmed a dimension of freedom that allows individuals to engage in intimate association without criminal liability, it does not follow that freedom stops there. Outlaw to outcast may be a step forward, but it does not achieve the full promise of liberty.

A third basis for protecting the right to marry is that it safeguards children and families and thus draws meaning from related rights of childrearing, procreation, and education. The Court has recognized these connections by describing the varied rights as a unified whole: "[T]he right to marry, establish a home and bring up children is a central part of the liberty protected by the Due Process Clause." *Zablocki*, 434 U.S. at 384. Under the laws of the several States, some of marriage's protections for children and families are material. But marriage also confers more profound benefits. By giving recognition and legal structure to their parents' relationship, marriage allows children "to understand the integrity and closeness of their own family and its concord with other families in their community and in their daily lives." *Windsor*, 133 S. Ct. 2675. Marriage also affords the permanency and stability important to children's best interests.

As all parties agree, many same-sex couples provide loving and nurturing homes to their children, whether biological or adopted. And hundreds of thousands of children are presently being raised by such couples. Most States have allowed gays and lesbians to adopt, either as individuals or as couples, and many adopted and foster children have same-sex parents. This provides powerful confirmation from the law itself that gays and lesbians can create loving, supportive families.

Excluding same-sex couples from marriage thus conflicts with a central premise of the right to marry. Without the recognition, stability, and predictability marriage offers, their children suffer the stigma of knowing their families are somehow lesser. They also suffer the significant material costs of being raised by unmarried parents, relegated through no fault of their own to a more difficult and uncertain family life. The marriage laws at issue here thus harm and humiliate the children of same-sex couples.

Printed by: 26ffbcee8c8c739@placeholder.93276.edu. Printing is for personal, private use only. No part of this book may be reproduced or transmitted without publisher's prior permission. Violators will be prosecuted.

sex couples.

That is not to say the right to marry is less meaningful for those who do not or cannot have children. An ability, desire, or promise to procreate is not and has not been a prerequisite for a valid marriage in any State.

Fourth and finally, this Court's cases and the Nation's traditions make clear that marriage is a keystone of our social order. [J]ust as a couple vows to support each other, so does society pledge to support the couple, offering symbolic recognition and material benefits to protect and nourish the union. [States] have throughout our history made marriage the basis for an expanding list of governmental rights, benefits, and responsibilities. These aspects of marital status include: taxation; inheritance and property rights; rules of intestate succession; spousal privilege in the law of evidence; hospital access; medical decisionmaking authority; adoption rights; the rights and benefits of survivors; birth and death certificates; professional ethics rules; campaign finance restrictions; workers' compensation benefits; health insurance; and child custody, support, and visitation rules. Valid marriage under state law is also a significant status for over a thousand provisions of federal law. The States have contributed to the fundamental character of the marriage right by placing that institution at the center of so many facets of the legal and social order.

There is no difference between same- and opposite-sex couples with respect to this principle. Yet by virtue of their exclusion from that institution, same-sex couples are denied the constellation of benefits that the States have linked to marriage. This harm results in more than just material burdens. Same-sex couples are consigned to an instability many opposite-sex couples would deem intolerable in their own lives. As the State itself makes marriage all the more precious by the significance it attaches to it, exclusion from that status has the effect of teaching that gays and lesbians are unequal in important respects. It demeans gays and lesbians for the State to lock them out of a central institution of the Nation's society.

page 3-34

The limitation of marriage to opposite-sex couples may long have seemed natural and just, but its inconsistency with the central meaning of the fundamental right to marry is now manifest. With that knowledge must come the recognition that laws excluding same-sex couples from the marriage right impose stigma and injury of the kind prohibited by our basic charter. Under the Constitution, same-sex couples seek in marriage the same legal treatment as opposite-sex couples, and it would disparage their choices and diminish their personhood to deny them this right.

The right of same-sex couples to marry that is part of the liberty promised by the Fourteenth Amendment is derived, too, from that Amendment's guarantee of the equal protection of the laws. The Due Process Clause and the Equal Protection Clause are connected in a profound way, though they set forth independent principles. Rights implicit in liberty and rights secured by equal protection may rest on different precepts and are not always coextensive, yet in some instances each may be instructive as to the meaning and reach of the other. In any particular case one Clause may be thought to capture the essence of the right in a more accurate and comprehensive way, even as the two Clauses may converge in the identification and definition of the right. This interrelation of the two principles furthers our understanding of what freedom is and must become.

The Court's cases touching upon the right to marry reflect this dynamic. In *Loving*, the Court invalidated a prohibition on interracial marriage under both the Equal Protection Clause and the Due Process Clause. The Court ... stated: "There can be no doubt that restricting the freedom to marry solely because of racial classifications violates the central meaning of the Equal Protection Clause." 388 U.S. at 12. With this link to equal protection, the Court proceeded to hold that the prohibition offended central precepts of liberty: "To deny this fundamental freedom on so unsupportable a basis as the racial classifications embodied in these statutes, classifications so directly subversive of the principle of equality at the heart of the Fourteenth Amendment, is surely to deprive all the State's citizens of liberty without due process of law." *Id*

The synergy between the two protections is illustrated further in *Zablocki*. There the Court invoked the Equal Protection Clause as its basis for invalidating the challenged law, which barred fathers who were behind on child-support payments from marrying without judicial approval. The equal protection analysis depended in central part on the Court's holding that the law burdened a right "of fundamental importance." 434 U.S. at 383. It was the essential nature of the marriage right that made apparent the law's incompatibility with requirements of equality. Each concept—liberty and equal protection—leads to a stronger understanding of the other.

Other cases confirm this relation between liberty and equality. In *M. L. B v. S. L. J*, 519 U.S. 102, 119—24 (1996), the Court invalidated under due process and equal protection principles a statute requiring indigent mothers to pay a fee in order to appeal the termination of their parental rights. In *Eisenstadt v Baird*, the Court invoked both principles to invalidate a prohibition on the distribution of contraceptives to unmarried persons but not married persons. *See* 405 U.S. at 446—54.

In *Lawrence*, the Court acknowledged the interlocking nature of these constitutional safeguards in the context of the legal treatment of gays and lesbians. Although *Lawrence* elaborated its holding under the Due Process Clause, it acknowledged, and sought to remedy, the continuing inequality that resulted from laws making intimacy in the lives of gays and lesbians a crime against the State. *See* 539 U.S. at 575. *Lawrence* therefore drew upon principles of liberty and equality to define and protect the rights of gays and lesbians, holding the State "cannot demean their existence or control their destiny by making their private sexual conduct a crime." *Id* at 578.

This dynamic also applies to same-sex marriage. It is now clear that the challenged laws burden the liberty of same-sex couples, and it must be further acknowledged that they abridge central precepts of equality. Here the marriage laws enforced by the respondents are in essence unequal: same-sex couples are denied all the benefits afforded to opposite-sex couples and are barred from exercising a fundamental right. Especially against a long history of disapproval of their relationships, this denial to same-sex couples of the right to marry works a grave and continuing harm.

These considerations lead to the conclusion that the right to marry is a fundamental right inherent in the liberty of the person, and under the Due Process and Equal Protection Clauses of the Fourteenth Amendment couples of the same-sex may not be deprived of that right and that liberty. The Court now holds that same-sex couples may exercise the fundamental right to marry. No longer may this liberty be denied to them. *Baker v. Nelson* must be and now is overruled, and the State laws challenged by Petitioners in these cases are now held invalid to the extent they exclude same-sex couples from civil marriage on the same terms and conditions as opposite-sex couples.

There may be an initial inclination in these cases to proceed with caution—to await further legislation, litigation, and debate. The respondents warn there has been insufficient democratic discourse before deciding an issue so basic as the definition of marriage. Yet there has been far more deliberation than this argument acknowledges. There have been referenda, legislative debates, and grassroots campaigns, as well as countless studies, papers, books, and other popular and scholarly writings. There has been extensive litigation in state and federal courts. Judicial opinions addressing the issue have been informed by the contentions of parties and counsel, which, in turn, reflect the more general, societal discussion of same-sex marriage and its meaning that has occurred over the past decades. As more than 100 *amici* make clear in their filings, many of the central institutions in American life—state and local governments, the military, large and small businesses, labor unions, religious organizations, law enforcement, civic groups, professional organizations, and universities—have devoted substantial attention to the question. This has led to an enhanced understanding of the issue—an understanding reflected in the

page 3-35

Printed by: 26ffbcee8c8c739@placeholder.93276.edu. Printing is for personal, private use only. No part of this book may be reproduced or transmitted without publisher's prior permission. Violators will be prosecuted.

substantial attention to the question. This has led to an enhanced understanding of the issue—an understanding reflected in the arguments now presented for resolution as a matter of constitutional law.

Of course, the Constitution contemplates that democracy is the appropriate process for change, so long as that process does not abridge fundamental rights. But ... when the rights of persons are violated, the Constitution requires redress by the courts, notwithstanding the more general value of democratic decisionmaking. An individual can invoke a right to constitutional protection when he or she is harmed, even if the broader public disagrees and even if the legislature refuses to act. The idea of the Constitution "was to withdraw certain subjects from the vicissitudes of political controversy, to place them beyond the reach of majorities and officials and to establish them as legal principles to be applied by the courts." *West Virginia Bd. of Ed v. Barnette*, 319 U.S. 624, 638 (1943). This is why "fundamental rights may not be submitted to a vote; they depend on the outcome of no elections." *Id*

This is not the first time the Court has been asked to adopt a cautious approach to recognizing and protecting fundamental rights. In *Bowers*, a bare majority upheld a law criminalizing same-sex intimacy. *See* 478 U.S. at 186. That approach might have been viewed as a cautious endorsement of the democratic process, which had only just begun to consider the rights of gays and lesbians. Yet, in effect, *Bowers* upheld state action that denied gays and lesbians a fundamental right and caused them pain and humiliation. Although *Bowers* was eventually repudiated in *Lawrence*, men and women were harmed in the interim, and the substantial effects of these injuries no doubt lingered long after *Bowers* was overruled. Dignitary wounds cannot always be healed with the stroke of a pen.

A ruling against same-sex couples would have the same effect—and, like *Bowers*, would be unjustified under the Fourteenth Amendment. The petitioners' stories[, as detailed earlier in this opinion,] make clear the urgency of the issue they present to the Court.

These cases also present the question whether the Constitution requires States to recognize same-sex marriages validly performed out of State. As made clear by the case of Obergefell and Arthur, and by that of DeKoe and Kostura, the recognition bans inflict substantial and continuing harm on same-sex couples. Being married in one State but having that valid marriage denied in another is one of "the most perplexing and distressing complication[s]" in the law of domestic relations. [Citation omitted.] Leaving the current state of affairs in place would maintain and promote instability and uncertainty. For some couples, even an ordinary drive into a neighboring State to visit family or friends risks causing severe hardship in the event of a spouse's hospitalization while across state lines. In light of the fact that many States already allow same-sex marriage—and hundreds of thousands of these marriages already have occurred—the disruption caused by the recognition bans is significant and ever-growing.

The Court, in this decision, holds that same-sex couples may exercise the fundamental right to marry in all States. It follows that the Court also must hold—and it now does hold—that there is no lawful basis for a State to refuse to recognize a lawful same-sex marriage performed in another State on the ground of its same-sex character.

No union is more profound than marriage, for it embodies the highest ideals of love, fidelity, devotion, sacrifice, and family. [The petitioners'] hope is not to be ... excluded from one of civilization's oldest institutions. They ask for equal dignity in the eyes of the law. The Constitution grants them that right.

Sixth Circuit's judgment reversed.

Suspect Classes Certain "suspect" bases of classification also trigger more rigorous equal protection review. Although what is considered a "suspect class" is subject to review and change, race, alienage, and national origin generally are considered **suspect classes**.

1. *Race and national origin.* Classifications disadvantaging racial or national minorities receive the most rigorous kind of strict scrutiny and are almost never constitutional. For instance, in a recent decision that dealt not only with the suspect class of race but also the fundamental right to vote, the Supreme Court struck down North Carolina's formulation of certain legislative voting districts because the formulation depended upon impermissible drawing of race-based lines. (The case was *Cooper v. Harris*, 137 S. Ct. 1455 (2017).)

page 3-36

The Supreme Court has sometimes upheld government-required affirmative action plans and what critics have called reverse racial discrimination—government action that benefits racial minorities and allegedly disadvantages whites. In 1989, however, a majority of the Court concluded that state action of this kind should receive the same full strict scrutiny as discrimination *against* racial or national minorities. A 1995 Supreme Court decision held that this is true of federal government action as well as state action. These developments have curtailed certain government-created affirmative action programs but have not eliminated them.

In the companion cases of *Gratz v. Bollinger,* 539 U.S. 244 (2003), and *Grutter v. Bollinger,* 539 U.S. 306 (2003), the Supreme Court considered whether the University of Michigan violated the Equal Protection Clause by taking minority students' race into account in its undergraduate and law school admissions policies. The Court recognized in the two cases that seeking student diversity in a higher education context is a compelling government interest. However, in *Gratz*, a five-justice majority of the Court held that the university's undergraduate admissions policy violated the Equal Protection Clause because the policy's consideration of minority applicants' race became effectively the automatic determining factor in admission decisions regarding minority applicants. In *Grutter*, on the other hand, a different five-justice majority held that the university's law school admissions policy did not violate the Equal Protection Clause. The *Grutter* majority reasoned that the law school's policy, in considering minority applicants' race, did so as

DO NOT COPY
Adopted for use by Cengage placeholder, 9781337...

Printed by: 26ffbcee8c8c739@placeholder.93276.edu. Printing is for personal, private use only. No part of this book may be reproduced or transmitted without publisher's prior permission. Violators will be prosecuted.

majority reasoned that the law school's policy, in considering minority applicants' race, did so as part of individualized consideration of applicants and of various types of diversity, not simply race. Thus, the law school's policy did not make race *the* determining factor in the impermissible way that the undergraduate policy did.

In the years following the decisions in *Gratz* and *Grutter*, the composition of the Supreme Court changed. When the Court agreed to decide a challenge to a race-conscious student admissions policy at the University of Texas (a policy patterned in large part after what the Court had approved in *Grutter*), speculation mounted that the Court might use the case as a vehicle for overruling *Grutter* or substantially cutting back on its effect. The Court did not do so, however. In *Fisher v. University of Texas*, 136 S. Ct. 2198 (2016), the Court reiterated a key *Grutter* principle: that seeking diversity in the student body at colleges and universities counts as a compelling government purpose in the strict scrutiny analysis. The Court also left unaltered *Grutter*'s approach of permitting race to be considered in admissions decisions, as long as it was among a number of other factors taken into account in an individualized consideration of applicants and of various types of diversity. According to the Court, the challenged University of Texas plan passed the constitutional test by being narrowly tailored to achievement of the compelling government interest in achieving student body diversity.

In 2014, the Supreme Court decided an affirmative action—related case that presented a different wrinkle in the form of this question: If consideration of race in state university admission decisions is sometimes permissible (as *Grutter* and *Fisher* indicate), can the voters of a state constitutionally *bar* the use of race as a consideration in such decisions? In a Michigan referendum that took place three years after the decision in *Grutter*, voters approved an amendment to the state constitution that prohibited the use of race-conscious affirmative action in public education, government contracting, and public employment. Ruling on a challenge to this action, the Court emphasized in *Schuette v. Coalition to Defend Affirmative Action*, 572 U.S. 291 (2014), that the case was "not about how the debate about racial preferences should be resolved." Rather, it was "about who may resolve it." The Court went on to hold that there was "no authority in the [U.S.] Constitution ... or in this Court's precedents for the judiciary to set aside Michigan laws that commit this policy determination to the voters."

A lawsuit against Harvard College claims that Harvard's admissions process violates Asian American applicants. The claim is not based on the Constitution; rather, it alleges violation of a federal law that prohibits discrimination among organizations or programs that receive federal funds (42 U.S.C. §2000d et seq.). But it is relevant for this discussion because the equal protection analysis applies to cases brought under that law. The federal district court in the Harvard case therefore analyzed the issue under the principles set forth in *Fisher* and found in favor of Harvard. At the time of this drafting, the case remained on appeal. *See Students for Fair Admissions, Inc. v. President and Fellows of Harvard College,* 397 F. Supp. 3d 126 (D. Mass. 2019). A similar case (though a direct constitutional challenge) against the University of North Carolina was pending as this book went to press (*see Students for Fair Admission, Inc. v. University of North Carolina,* 2019 WL 4773908 (M.D.N.C. Sept. 30, 2019)).

2. *Sex.* Although the Supreme Court has been hesitant to make a formal declaration that sex is a suspect class, for roughly four decades laws discriminating on the basis of gender have been subjected to a fairly rigorous form of *intermediate scrutiny*. As the Court has said, page 3-37
such laws require an "exceedingly persuasive" justification. The usual test is that government action discriminating on the basis of sex must be *substantially* related to the furtherance of an *important* government purpose. Under this test, measures discriminating against women have almost always been struck down. The Supreme Court has said that laws disadvantaging men receive the same scrutiny as those disadvantaging women, but this has not prevented the Court from upholding men-only draft registration and a law making statutory rape a crime for men alone.

With gender as a longstanding suspect class and with legal developments such as the *Obergefell* decision's extension of the right to marry to same-sex couples, will the Supreme Court formally recognize sexual orientation and transgender status as suspect classes for equal protection purposes? Signs of such a development are at least discernible, but how immediately such a development may occur is an open question.

Printed by: 26ffbcee8c8c739@placeholder.93276.edu. Printing is for personal, private use only. No part of this book may be reproduced or transmitted without publisher's prior permission. Violators will be prosecuted.

Ethics and Compliance in Action



As discussion in this chapter reveals, Supreme Court precedent establishes that when government action discriminates on the basis of race or sex, the action will receive heightened scrutiny from the court if an equal protection challenge is brought. Despite cases such as *Obergefell v. Hodges* (in which the Supreme Court held that same-sex couples cannot be denied the fundamental right to marry), the Court has not recognized sexual orientation or transgender status as a suspect class for equal protection purposes. Unless and until the Court does so, the government may have more legal latitude to regulate in ways that draw lines on the basis of persons' sexual orientation or transgender status than in ways that classify on the basis of persons' race or sex. Now view this set of issues from an ethical perspective. Should the government be any freer to take actions that discriminate against gays, lesbians, or transgender persons than it is to take actions that discriminate on the basis of race or sex? As you consider this question, you may wish to examine Chapter 4's discussion of ethical theories and ethical decision making.

Independent Checks Applying Only to the States

The Contract Clause Article I, § 10 of the Constitution states: "No State shall ... pass any ... Law impairing the Obligation of Contracts." Known as the *Contract Clause*, this provision deals with state laws that change the parties' performance obligations under an *existing* contract *after* that contract has been made.[2] The original purpose of the Contract Clause was to strike down the many debtor relief statutes passed by the states after the Revolution. These statutes impaired the obligations of existing private contracts by relieving debtors of what they owed to creditors. In two early 19th-century cases, however, the Contract Clause was also held to protect the obligations of *governmental* contracts, charters, and grants.

The Contract Clause probably was the most important constitutional check on state regulation of the economy for much of the 19th century. Beginning in the latter part of that century, the clause gradually became subordinate to legislation based on the states' police powers. By the mid-20th century, most observers treated the clause as being of historical interest only. In 1977, however, the Supreme Court gave the Contract Clause new life by announcing a fairly strict constitutional test governing situations in which a state impairs *its own* contracts, charters, and grants. Such impairments, the Court said, must be "reasonable and necessary to serve an important public purpose."

During recent decades, the Court has continued its deference toward state regulations that impair the obligations of *private* contracts. Consider, for instance, *Exxon Corp. v. Eagerton*, 462 U.S. 176 (1983). For years, Exxon had paid a severance tax under Alabama law on oil and gas it drilled within the state. As the tax increased, appropriate provisions in Exxon's contracts with the purchasers of its oil and gas allowed Exxon to pass on the amounts of the increases to the purchasers. Alabama, however, enacted a law that not only increased the severance tax but also forbade producers of oil and gas from passing on the increase to purchasers. Exxon filed suit, seeking a declaration that the law's pass-on prohibition violated the Contract Clause. Affirming Alabama's highest court, the U.S. Supreme Court observed that the Contract Clause allows the states to adopt broad regulatory measures without having to be concerned that private contracts will be affected. The pass-on prohibition was designed to advance a broad public interest in protecting consumers against excessive prices and was applicable to all oil and gas producers regardless of whether they were then parties to contracts containing pass-on provisions. Therefore, the Court reasoned, the Alabama statute did not violate the Contract Clause.

Concept Review

Equal Protection and Levels of Scrutiny

Type of Government Action	Controlling Test	Operation and Effect of Test

DO NOT COPY
26thbcees.93.59@pacificlaw.edu

Printed by: 26ffbcee8c8c739@placeholder.93276.edu. Printing is for personal, private use only. No part of this book may be reproduced or transmitted without publisher's prior permission. Violators will be prosecuted.

Government action that discriminates but neither affects exercise of fundamental right nor discriminates against suspect class (e.g., most social and economic regulation)	Rational basis	Lenient test—government action is constitutional if rationally related to legitimate government purpose.
Government action that discriminates concerning ability to exercise fundamental right	Full strict scrutiny	Very rigorous test—government action is unconstitutional unless necessary to fulfillment of compelling government purpose.
Government action that discriminates on basis of race or national origin	Full strict scrutiny	Very rigorous test—government action is unconstitutional unless necessary to fulfillment of compelling government purpose.
Government action that discriminates on basis of sex (gender)	Intermediate scrutiny	Moderately rigorous test—government action is unconstitutional unless substantially related to fulfillment of important government purpose.

Federal Preemption

LO3-9 Identify the major circumstances in which federal law will preempt state law.

The constitutional principle of **federal supremacy** dictates that when state law conflicts with valid federal law, the federal law is supreme. In such a situation, the state law is said to be *preempted* by the federal regulation. The central question in most federal preemption cases is the intent of Congress. Thus, such cases often present complex questions of statutory interpretation.

Federal preemption of state law generally occurs for one or more of these reasons:

1. *There is a literal conflict between the state and federal measures, so that it is impossible to follow both simultaneously.*
2. *The federal law specifically states that it will preempt state regulation in certain areas.* Similar statements may also appear in the federal statute's legislative history. Courts sometimes find such statements persuasive even when they appear only in the legislative history and not in the statute itself.
3. *The federal regulation is pervasive.* If Congress has "occupied the field" by regulating a subject in great breadth and/or in considerable detail, such action by Congress may suggest an intent to displace state regulation of the subject. This may be especially likely where Congress has given an administrative agency broad regulatory power in a particular area.
4. *The state regulation is an obstacle to fulfilling the purposes of the federal law.* Here, the party challenging the state law's constitutionality typically claims that the state law interferes with the purposes she attributes to the federal measure (purposes usually found in its legislative history).

DO NOT COPY
Voucher: placeholder:93276

Printed by: 26ffbcee8c8c739@placeholder.93276.edu. Printing is for personal, private use only. No part of this book may be reproduced or transmitted without publisher's prior permission. Violators will be prosecuted.

history).

Arizona v. United States, 567 U.S. 387 (2012), illustrates the principles set forth in the above discussion of grounds for preemption. In that case, the Supreme Court was faced with deciding whether certain provisions in an Arizona law were preempted by federal immigration law, which has been enacted pursuant to the power granted to Congress over immigration matters in Article I, § 8 of the Constitution. The Court held that the so-called show me your papers provision in the Arizona law was not preempted. That provision called for state law enforcement officers to determine the immigration status of anyone they stopped or arrested if there was reason to suspect that the person might be in the country illegally.

However, the Court held that federal immigration law preempted three other provisions in the Arizona law: a provision making it a crime under Arizona law for an immigrant to fail to register under a federal law, a provision making it a crime under Arizona law for illegal immigrants to work or seek work, and a provision allowing Arizona law enforcement officers to make warrantless arrests if the officers have probable cause to believe the arrested persons committed acts that would make them subject to deportation under federal law. The preempted provisions either conflicted with federal law or posed too great an impediment to fulfillment of the federal law's objectives.

page 3-39

The Takings Clause

LO3-10 Explain the power granted to the government by the Takings Clause, as well as the limits on that power.

The Fifth Amendment states that "private property [shall not] be taken for public use, without just compensation." Because this **Takings Clause** has been incorporated within Fourteenth Amendment due process, it applies to the states. Traditionally, it has come into play when the government formally condemns land through its power of **eminent domain**,[3] but it has many other applications as well.

The Takings Clause both recognizes government's power to take private property and limits the exercise of that power. It does so by requiring that when *property* is subjected to a governmental *taking*, the taking must be for a *public use* and the property owner must receive *just compensation*. We now consider these four aspects of the Takings Clause in turn.

1. *Property.* The Takings Clause protects other property interests besides land and interests in land. Although its full scope is unclear, the clause has been held to cover takings of personal property, liens, trade secrets, and contract rights.
2. *Taking.* Because of the range of property interests it may cover, the Takings Clause potentially has a broad scope. Another reason for the clause's wide possible application is the range of government activities that may be considered takings. Of course, the government's use of formal condemnation procedures to acquire private property is a taking. There may also be a taking when the government physically invades private property or allows someone else to do so.

   It has long been recognized, moreover, that overly extensive land use regulation may so diminish the value of property or the owner's enjoyment of it as to constitute a taking. Among the factors courts consider in such "regulatory taking" cases are the degree to which government deprives the owner of free possession, use, and disposition of his property; the overall economic impact of the regulation on the owner; and how much the regulation interferes with the owner's reasonable investment-backed expectations regarding the future use of the property. In *Lucas v. South Carolina Coastal Council*, 505 U.S. 1003 (1992), the Supreme Court held that there is an automatic taking when the government denies the owner *all* economically beneficial uses of the land. When this is not the case, courts tend to apply some form of means-ends scrutiny in determining whether land use regulation has gone too far and thus amounts to a regulatory taking.
3. *Public use.* Once a taking of property has occurred, it is unconstitutional unless it is for a public use. The public use element took center stage in a widely publicized 2005 Supreme

DO NOT COPY. Professor Spencer Holder:93276

Printed by: 26ffbcee8c8c739@placeholder.93276.edu. Printing is for personal, private use only. No part of this book may be reproduced or transmitted without publisher's prior permission. Violators will be prosecuted.

public use. The public use element took center stage in a widely publicized 2005 Supreme Court decision, *Kelo v. City of New London.* For discussion of *Kelo*, see Figure 3.4.

4. *Just compensation.* Even if a taking of property is for a public use, it still is unconstitutional if the property owner does not receive just compensation. Although the standards for determining just compensation vary with the circumstances, the basic test is the fair market value of the property (or of the lost property right) at the time of the taking.

Figure 3.4 Economic Development as Public Use?

Does the government's taking of private property for the purpose of economic development satisfy the *public use* requirement set forth in the Fifth Amendment's Takings Clause? In *Kelo v. City of New London*, 545 U.S. 469 (2005), the U.S. Supreme Court answered "yes."

New London, Connecticut, experienced economic decline for a considerable number of years. The city therefore made economic revitalization efforts, which included a plan to acquire 115 parcels of real estate in a 90-acre area and create, in collaboration with private developers, a multifaceted zone that would combine commercial, residential, and recreational elements. The planned development was designed to increase tax revenue, create jobs, and otherwise capitalize on the economic opportunities that city officials expected would flow from a major pharmaceutical company's already-announced plan to construct a large facility near the area the city wished to develop.

The city was able to negotiate the purchase of most parcels of property in the 90-acre area, but some property owners refused to sell. The latter group included Susette Kelo and Wilhelmina Dery. Kelo had lived in her home for several years, had made substantial improvements to it, and especially enjoyed the water view it afforded. Dery had lived her entire life in the home the city sought to acquire. Both homes were well maintained. After the city decided to use its eminent domain power to acquire the properties of those owners who refused to sell, Kelo, Dery, and the other nonselling owners filed suit. They contended that the city's plan to take their property for the purpose of economic development did not involve a public use and thus would violate the Fifth Amendment's Takings Clause. The dispute made its way through the Connecticut courts and then to the U.S. Supreme Court, where a five-justice majority ruled in favor of the city.

page 3-40

Writing for the majority in *Kelo v. City of New London,* Justice Stevens noted that earlier decisions had identified three types of eminent domain settings in which the government's acquisition of private property satisfied the constitutional *public use* element: first, when the government planned to develop a government-owned facility (e.g., a military base); second, when the government planned to construct, or allow others to construct, improvements to which the public would have broad access (e.g., highways or railroads); and third, when the government sought to further some meaningful *public purpose*. Justice Stevens observed that precedents had recognized the *public purpose* type of public use even if the government would not ultimately retain legal title to the acquired property (unlike the military base example) and the acquired property would not be fully opened up for public access (unlike the highway and railroad examples). The Court acknowledged that the public use requirement clearly would not be satisfied if the government took private party A's property simply to give it to private party B. However, the Court stressed, the prospect that private parties might ultimately own or control property the government had acquired through eminent domain would not make the taking unconstitutional if an overriding public purpose prompted the government's use of eminent domain. Similarly, even if certain private parties (e.g., the pharmaceutical company and private developers in the *Kelo* facts) would stand to benefit from the government's exercise of eminent domain, such a fact would not make the taking unconstitutional if a public purpose supported the taking.

The *Kelo* majority stressed the particular relevance of two earlier Supreme Court decisions, *Berman v. Parker*, 348 U.S. 26 (1954), and *Hawaii Housing Authority v. Midkiff*, 467 U.S. 299 (1984). In *Berman*, the Court sustained Washington, D.C.'s use of eminent domain to take property that included businesses and "blighted" dwellings in order to construct a low-income housing project and new streets, schools, and public facilities. In *Midkiff*, the Court upheld Hawaii's use of eminent domain to effectuate a legislative determination that Hawaii's longstanding land oligopoly, under which property ownership was highly concentrated among a small number of property owners, had to be broken up for social and economic reasons. The *Kelo* majority concluded that significant public purposes were present in both *Berman* and *Midkiff* and that those decisions led logically to the conclusion that economic development was a public purpose weighty enough to constitute public use for purposes of the Takings Clause. Therefore, the Court upheld the city's exercise of eminent domain in *Kelo*.

In his majority opinion, Justice Stevens was careful to point out that because the constitutional question was whether a public use existed, it was not the Court's job to determine the wisdom of the government's attempt to exercise eminent domain. Neither should the Court allow its decision to be guided by the undoubted hardship that eminent domain places on unwilling property owners who must yield their homes to the state (albeit in return for "just compensation"). Justice Stevens emphasized that if state legislatures believed an economic development purpose such as the one the City of New London had in mind should not be used to support an exercise of eminent domain, the legislatures were free to specify, in their state statutes, that eminent domain could not be employed for an economic development purpose. The Court's determination of what is a public use for purposes of the Takings Clause sets a protective floor for property owners, with states being free to give greater protection against takings by the government.

The four dissenting justices in *Kelo* issued sharply worded opinions expressing their disagreement with the majority's characterization of *Berman* and *Midkiff* as having led logically to the conclusion that economic development was a public use. In emotional terms, the dissenters accused the majority of having effectively erased the public use requirement from the Takings Clause. The *Kelo* decision drew considerable media attention, perhaps more because of what appeared to be considerable hardship to property owners such as Kelo and Dery than because of new legal ground—if any—broken in the decision. For many observers, the case's compelling facts led to a perception that the city had engaged in overreaching. The Court's decision in *Kelo* meant that in a legal sense, there was no overreaching on the part of the city. Was there, however, overreaching in an *ethical* sense? How would *utilitarians* answer that question? What about *rights theorists*? (As you consider the questions, you may wish to consult Chapter 4.)

Printed by: 26ffbcee8c8c739@placeholder.93276.edu. Printing is for personal, private use only. No part of this book may be reproduced or transmitted without publisher's prior permission. Violators will be prosecuted.

Problems and Problem Cases

1. In 1967, Gary Jones purchased a house ona North Bryan Street in Little Rock, Arkansas. He and his wife lived in the house until they separated in 1993. Jones then moved into an apartment in Little Rock, and his wife continued to live in the house. Jones paid his mortgage each month for 30 years. The mortgage company paid the property taxes on the house. After Jones paid off his mortgage in 1997, the property taxes went unpaid. In April 2000, the Arkansas Commissioner of State Lands (Commissioner) attempted to notify Jones of his tax delinquency and his right to redeem the property by paying the past-due taxes. The Commissioner sought to provide this notice by mailing a certified letter to Jones at the North Bryan Street address. Arkansas law approved the use of such a method of providing notice. The packet of information sent by the Commissioner stated that unless Jones redeemed the property, it would be subject to public sale two years later. No one was at home to sign for the letter. No one appeared at the post office to retrieve the letter within the next 15 days. The post office then returned the unopened packet to the Commissioner with an "unclaimed" designation on it. In the spring of 2002, a few weeks before the public sale scheduled for Jones's house, the Commissioner published a notice of public sale in a local newspaper. No bids were submitted, meaning that under Arkansas law, the state could negotiate a private sale of the property.

Several months later, Linda Flowers submitted a purchase offer. The Commissioner then mailed another certified letter to Jones at the North Bryan Street address, attempting to notify him that his house would be sold to Flowers if he did not pay his delinquent taxes. As with the first letter, the second letter was returned to the Commissioner with an "unclaimed" designation. Flowers purchased the house. Immediately after the expiration of the 30-day period in which Arkansas law would have allowed Jones to make a post-sale redemption of the property by paying the past-due taxes, Flowers had an eviction notice delivered to the North Bryan Street property. The notice was served on Jones's daughter, who contacted Jones and notified him of the tax sale. Jones then filed a lawsuit in Arkansas state court against the Commissioner and Flowers. In his lawsuit, Jones contended that the Commissioner's failure to provide notice of the tax sale and of Jones's right to redeem resulted in the taking of his property without due process. The trial court ruled in favor of the Commissioner and Flowers, and the Arkansas Supreme Court affirmed. The U.S. Supreme Court agreed to decide the case and its central question of whether Jones was afforded due process. How did the U.S. Supreme Court rule?

2. Two Rhode Island statutes prohibited advertising the retail price of alcoholic beverages. The first applied to vendors licensed in Rhode Island as well as to out-of-state manufacturers, wholesalers, and shippers. It prohibited them from "advertising in any manner whatsoever" the price of any alcoholic beverage offered for sale in the state. The only exception to the restriction was for price tags or signs displayed with the merchandise within licensed premises, if the tags or signs were not visible from the street. The second statute barred the Rhode Island news media from publishing or broadcasting advertisements that made reference to the price of any alcoholic beverages. 44 Liquormart Inc., a licensed retailer of alcoholic beverages, operated a store in Rhode Island. Because it wished to advertise prices it would charge for alcoholic beverages, 44 Liquormart filed a declaratory judgment action against the state. 44 Liquormart asked the court to rule that the statutes referred to above violated the First Amendment. The district court concluded that the statutes failed the applicable test for restrictions on commercial speech and therefore struck them down. The U.S. Court of Appeals for the First Circuit reversed, determining that the statutes were constitutionally permissible restrictions on commercial speech. The U.S. Supreme Court granted 44 Liquormart's petition for a writ of certiorari. How did the Supreme Court rule?

Printed by: 26ffbcee8c8c739@placeholder.93276.edu. Printing is for personal, private use only. No part of this book may be reproduced or transmitted without publisher's prior permission. Violators will be prosecuted.

3. A federal statute, 8 U.S.C. § 1409, sets requirements for acquisition of U.S. citizenship by a child born outside the United States to unwed parents, only one of whom is a U.S. citizen. If the mother is the U.S. citizen, the child acquires citizenship at birth. Section 1409(a) states that when the father is the citizen parent, the child acquires citizenship only if, before the child reaches the age of 18, the child is legitimized under the law of the child's residence or domicile, the father acknowledges paternity in writing under oath, or paternity is established by a competent court. Tuan Anh Nguyen was born in Vietnam to a Vietnamese mother and a U.S. citizen father, Joseph Boulais. At six years of age, Nguyen came to the United States, where he became a lawful permanent resident and was raised by his father. When Nguyen was 22, he pleaded guilty in a Texas court to two counts of sexual assault. The U.S. Immigration and Naturalization Service initiated deportation proceedings against Nguyen, and an immigration judge found him deportable. While Nguyen's appeal to the U.S. Board of Immigration Appeals was pending, Boulais obtained from a state court an order of parentage that was based on DNA testing. The board dismissed Nguyen's appeal, denying his citizenship claim on the ground that he had not established compliance with § 1409(a). Nguyen and Boulais appealed to the U.S. Court of Appeals for the Fifth Circuit, which rejected their contention that § 1409 discriminated on the basis of gender and thus violated the Constitution's equal protection guarantee. Was the Fifth Circuit's decision correct?

page 3-42

4. As most other states do, the Commonwealth of Kentucky taxes its residents' income. Kentucky law establishes that interest on bonds issued by Kentucky and its political subdivisions is exempt from Kentucky's income tax, whereas interest on bonds issued by other states and their political subdivisions is taxable. The tax exemption for Kentucky bonds helps make those bonds attractive to in-state purchasers even if they carry somewhat lower rates of interest than other states' bonds or those issued by private companies. Most other states have differential tax schemes that resemble Kentucky's. Kentucky residents George and Catherine Davis paid state income tax on interest from out-of-state municipal bonds, and then sued the Department of Revenue of Kentucky in an effort to obtain a refund. The Davises contended that Kentucky's differential taxation of municipal bond interest impermissibly discriminates against interstate commerce in violation of the U.S. Constitution's Commerce Clause. Were the Davises correct?

5. Nike Inc. mounted a public relations campaign in order to refute news media allegations that its labor practices overseas were unfair and unlawful. The campaign involved the use of press releases, letters to newspapers, a letter to university presidents and athletic directors, and full-page advertisements in leading newspapers. Relying on California statutes designed to curb false and misleading advertising and other forms of unfair competition, California resident Mark Kasky filed suit in a California court on behalf of the general public of the state. Kasky contended that Nike had made false statements in its campaign and that the court should therefore grant the legal relief contemplated by the California statutes. In terms of Nike's potential liability, why would it make a difference whether the speech in which Nike engaged was commercial or, instead, noncommercial? What are the arguments in favor of a conclusion that Nike was engaged in commercial speech? What are the arguments in favor of a conclusion that Nike was engaged in noncommercial speech? How did the court rule on the speech classification issue—that is, whether Nike's speech was commercial or, instead, that it is noncommercial?

6. Public school districts in Seattle, Washington, and Louisville, Kentucky, faced litigation in which it was alleged that they violated the Equal Protection Clause by considering race when assigning students to schools. The Seattle district, which had neither created segregated schools nor been subject to court-ordered desegregation, generally allowed students to choose which high school they wished to attend. However, the district classified students as white or nonwhite. It then used the racial classifications as a "tiebreaker" to allocate available slots in particular high schools and thereby seek to achieve racially diverse schools despite the existence of certain housing patterns that would have produced little racial diversity at certain schools. The Louisville district had

Printed by: 26ffbcee8c8c739@placeholder.93276.edu. Printing is for personal, private use only. No part of this book may be reproduced or transmitted without publisher's prior permission. Violators will be prosecuted.

been subject to a federal court's desegregation decree during a two-decades-long period, but a court had lifted the desegregation order after concluding that the district had eliminated the vestiges of prior segregation to the greatest extent feasible. The Louisville district then adopted a plan under which students were classified as Black or "other." Using these classifications in making elementary school assignments and in ruling on transfer requests, the district sought to achieve racial diversity in schools that would have reflected less racial diversity in light of traditional housing patterns. The cases challenging the two districts' policies of considering race made their way through the federal courts and were later consolidated for decision by the U.S. Supreme Court.

What test would the Seattle and Louisville school districts need to pass in order to avoid a Supreme Court determination that their policies violate the Equal Protection Clause? Could the school districts pass that test? Why or why not?

7. Marijuana is classified under federal law as an illegal drug. On what enumerated power would Congress have relied when it enacted the federal statute that outlaws marijuana and other specified drugs?

A number of states have legalized marijuana possession and use up to certain levels designated in their laws. Several other states have legalized marijuana possession and use for medicinal purposes, but for those purposes only. As a constitutional matter, could the federal government—if it were so inclined—adopt an aggressive enforcement posture in which it would override the state laws to the contrary? If so, on what constitutional basis? If not, why not?

page 3-43

8. The Minnesota legislature passed a statute banning the sale of milk in plastic nonrefillable, nonreusable containers. However, it allowed sales of milk in other nonrefillable, nonreusable containers such as paperboard cartons. One of the justifications for this ban on plastic jugs was that it would ease the state's solid waste disposal problems because plastic jugs occupy more space in landfills than other nonreturnable milk containers. A group of dairy businesses challenged the statute, arguing that its distinction between plastic containers and other containers was unconstitutional under the Equal Protection Clause. What means-ends test or level of scrutiny applies in this case? Under that test, is easing the state's solid waste disposal problems a sufficiently important *end*? Under that test, is there a sufficiently close "fit" between the classification and that end to make the statutory *means* constitutional? In answering the last question, assume for the sake of argument that there probably were more effective ways of alleviating the solid waste disposal problem than banning plastic jugs while allowing paperboard cartons.

9. The plaintiffs in the case described below were two married same-sex couples who conceived children through anonymous sperm donation. Leigh and Jana Jacobs were married in Iowa in 2010, and Terrah and Marisa Pavan were married in New Hampshire in 2011. Leigh and Terrah each gave birth to a child in Arkansas in 2015. When it came time to secure birth certificates for the newborns, each couple filled out paperwork listing both spouses as parents—Leigh and Jana in one case, Terrah and Marisa in the other. Both times, however, the Arkansas Department of Health issued certificates bearing only the birth mother's name. The department's decision rested on a provision of Arkansas law that specified which individuals will appear as parents on a child's state-issued birth certificate. The statute stated that "[f]or the purposes of birth registration, the mother is deemed to be the woman who gives birth to the child." The statute also instructed that "[i]f the mother was married at the time of either conception or birth, the name of [her] husband shall be entered on the certificate as the father of the child." The requirement that a married woman's husband appear on her child's birth certificate applied, according to the state's interpretation of the statute, if the couple conceived by means of artificial insemination with the help of an anonymous sperm donor.

The Jacobses and Pavans brought this suit in Arkansas state court against the director of the Arkansas Department of Health in an effort to obtain a declaration that the state's birth-certificate law violated the U.S. Constitution. The trial court so ruled, but the Arkansas Supreme Court reversed the trial court's decision. The U.S. Supreme Court

Printed by: 26ffbcee8c8c739@placeholder.93276.edu. Printing is for personal, private use only. No part of this book may be reproduced or transmitted without publisher's prior permission. Violators will be prosecuted.

Arkansas Supreme Court reversed the trial court's decision. The U.S. Supreme Court agreed to decide the case. What constitutional provision or provisions do you see as relevant here? How did the Supreme Court rule?

10. While it was preparing a comprehensive land use plan in the area, the Tahoe Regional Planning Agency (TRPA) imposed two moratoria on development of property in the Lake Tahoe Basin. The moratoria together lasted 32 months. A group of property developers affected by the moratoria filed suit in federal court alleging that the moratoria constituted an unconstitutional taking without just compensation. Were the developers correct?

11. A federal statute criminalized the creation, sale, or possession of certain depictions of animal cruelty. For purposes of the statute, a depiction of "animal cruelty" was defined as one "in which a living animal is intentionally maimed, mutilated, tortured, wounded, or killed," if the depicted conduct violated federal or state law at the place where the creation, sale, or possession took place. The legislative history of the statute indicated that it was prompted by a congressional objective of eliminating dissemination of so-called crush videos (videos showing live animals being crushed to death by persons stomping on them).

Robert Stevens operated a website on which he sold videos of pitbulls engaging in dogfighting and otherwise attacking animals. After he was convicted of violating the above-described statute by selling the videos, he appealed on the ground that the statute violated the First Amendment. The case made its way to the U.S. Supreme Court. How did the Court rule? Was Stevens entitled to the protection of the First Amendment?

12. Florida's Code of Judicial Conduct bars judges and candidates running for election to a judgeship from personally soliciting campaign contributions of a financial nature. Attorney Lanell Williams-Yulee, a candidate running for election to a Florida judgeship, drafted and mailed a letter to voters. In the letter, she asked for donations to her campaign. The State Bar of Florida brought a disciplinary proceeding against Williams-Yulee because of the letter. The proceedings concluded with a finding that a public reprimand was in order because she had violated the Code of Judicial Conduct. The Bar rejected Williams-Yulee's argument that the ban on personal solicitation violated her First Amendment rights. The Supreme Court of Florida also rejected that argument. The U.S. Supreme Court agreed to decide the case. What kind of speech was Williams-Yulee engaging in through her letter soliciting contributions to her campaign? Did the Code of Judicial Conduct's restriction on personal solicitation violate her First Amendment rights?

13. A federal law, the Immigration Reform and Control Act (IRCA), makes it "unlawful for a person or other entity ... to hire, or to recruit or refer for a fee, for employment in the United States an alien knowing the alien is an unauthorized alien." Employers that violate this prohibition may be subjected to civil and criminal sanctions. IRCA also restricts the ability of states to combat employment of unauthorized workers. It does so by expressly preempting "any state or local law imposing civil or criminal sanctions (other than through licensing and similar laws) upon those who employ, or recruit or refer for a fee for employment, unauthorized aliens." In addition, IRCA requires employers to take steps to verify an employee's eligibility for employment. Seeking to improve that verification process, Congress created E-Verify, an Internet-based system employers can use to check the work authorization status of employees. Federal law does not require the use of E-Verify, however.

Arizona was among several states that enacted statutes designed to impose sanctions for the employment of unauthorized aliens. According to an Arizona law (the Legal Arizona Workers Act), the licenses of state employers that knowingly or intentionally employ unauthorized aliens may be, and in certain circumstances must be, suspended or revoked. The Arizona law also requires that all Arizona employers use E-Verify. The Chamber of Commerce of the United States and various business and civil rights organizations filed suit against those charged with administering the Arizona law. The plaintiffs argued that the state law's license suspension and revocation provisions were both expressly and impliedly preempted by federal immigration law, and that the mandatory use of E-Verify was impliedly preempted. Were the plaintiffs right? Did federal

Printed by: 26ffbcee8c8c739@placeholder.93276.edu. Printing is for personal, private use only. No part of this book may be reproduced or transmitted without publisher's prior permission. Violators will be prosecuted.

mandatory use of E-Verify was impliedly preempted. Were the plaintiffs right? Did federal immigration law preempt the challenged provisions of the Arizona statute?

[1]However, the Thirteenth Amendment, which bans slavery and involuntary servitude throughout the United States, does not have a government action requirement. Some state constitutions, moreover, have individual rights provisions that lack a state action requirement.

[2]Under the Fifth Amendment's Due Process Cause, standards similar to those described in this section apply to the federal government.

[3]Eminent domain and the Takings Clause's application to land use problems are discussed in Chapter 24.

DO NOT COPY
26ffbcee8c8c739@placeholder.93276